

26NNCV02460 26NNCV02460

County: los-angeles

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Case Number: 26NNCV02460 Hearing Date: August 21, 2026 Dept: B

Hon. Victor Avila, Dept B

DEMURRER TO COMPLAINT

Hearing Date: 8/21/26

CASE NO.: 26NNCV02460

CASE NAME: Ojong

Asu, et al. vs Mercedes-Benz USA, LLC, et al.

Moving Party: Defendant Mercedes-Benz USA, LLC

Responding Party: Plaintiffs Lewis Ojong Asu and Mirabel Bahbit Sama

Notice: Sufficient

Ruling: SUSTAINED

with leave to amend.

NOTICE

The Court is not requesting oral argument

on this matter/motion. The Court is

guided by California Rules of Court, Rule 3.1308(a)(1) whereby notice of intent

to appear is requested. Unless the Court

directs argument in the Tentative Ruling, no argument is requested and ANY

PARTY SEEKING ARGUMENT SHOULD NOTIFY ALL OTHER PARTIES AND THE COURT BY 4:00

P.M. ON THE COURT DAY BEFORE THE HEARING of the party's intention to argue as to this matter/motion. The tentative ruling will become the ruling of the court if no argument is received. Notice may be given either by email at or by telephone at (818) 260-8422.

Parties must appear on all other matters scheduled for this case.

BACKGROUND

This is a lemon law action. In 2025, Plaintiffs Lewis Ojong Asu and Mirabel Bahbit Sama (Plaintiffs) purchased a used 2022 vehicle. On April 2, 2026, Plaintiffs filed a Complaint against defendants Mercedes-Benz USA, LLC (Defendant), Los Angeles M, Inc., and DBA Keyes European alleging violations of the Song-Beverly Act and negligent repair.

On May 22, 2026, Defendant filed the instant demurrer as to the first cause of action for violation of the Song-Beverly Act, the only cause of action asserted against Defendant.

On August 10, 2026, Plaintiffs filed an opposition.

On August 14, 2026, Defendant filed a reply.

REQUEST FOR JUDICIAL NOTICE

Judicial notice may not be taken of any matter, unless authorized or required by law.

(Evid. Code, § 450.) Under Evidence Code section 452, the Court may take judicial notice of the private and official acts of the legislative, executive, and judicial departments of the United States and of any state of the United States; and the records of any court of the United States and of any state of the United States; and it must take judicial notice of those acts and records if a party so requests and provides sufficient notice to the adverse party.

(Evid. Code, §§ 452, 453.) "In determining the sufficiency of a complaint against demurrer a court will consider matters that may be judicially noticed." (Joslin v. H.A.S. Ins.

Brokerage (1986) 184 Cal.App.3d 369, 374.)

Here, Defendant requests judicial notice of Exhibit (3): The Contract, signed by Plaintiff on March 27, 2025, pursuant to Evidence Code section 452(h). (RJN, p. 2.) The request is denied. (Evid. Code, § 452, subd. (h).)

EVIDENTIARY OBJECTIONS

Plaintiffs submit one evidentiary objection to Defendant's evidence – Chan Declaration, ¶ 3, Exhibit 3, the true and correct copy of the sales Contract signed by Plaintiff(s)

Overruled: None

Sustained: No. 1

The Court sustains objection on the grounds of no authentication and hearsay as it was presented by the declaration of Ms. Chan, who does not purport to be a party to the agreement.

LEGAL STANDARD

"[A] demurrer tests the legal sufficiency of the allegations in a complaint." (Lewis v. Safeway, Inc. (2015) 235 Cal.App.4th 385, 388.) A demurrer can be used only to challenge defects that appear on the face of the pleading under attack or from matters outside the pleading that are judicially noticeable. (See Donabedian v. Mercury Ins. Co. (2004) 116 Cal.App.4th 968, 994 [in ruling on a demurrer, a court may not consider declarations, matters not subject to judicial notice, or documents not accepted for the truth of their contents].) For purposes of ruling on a demurrer, all facts pleaded in a complaint are assumed to be true, but the reviewing court does not assume the truth of conclusions of law. (Aubry v. Tri-City Hosp. Dist. (1992) 2 Cal.4th 962, 967.)

Further, the court may, upon motion, or at any time in its discretion, and upon terms it deems proper, strike any irrelevant, false, or improper matter inserted in any pleading. (Code Civ. Proc., § 436, subd. (a).) The court

may also strike all or any part of any pleading not drawn or filed in conformity with the laws of this state, a court rule, or an order of the court. (Code Civ. Proc., § 436, subd. (b).) The grounds for a motion to strike are that the pleading has irrelevant, false, or improper matter, or has not been drawn or filed in conformity with laws. (Code Civ. Proc., § 436.) The grounds for moving to strike must appear on the face of the pleading or by way of judicial notice. (Code Civ. Proc., § 437.)

Leave to amend must be allowed where there is a reasonable possibility of successful amendment. (See *Goodman v. Kennedy* (1976) 18 Cal.3d 335, 349 [court shall not “sustain a demurrer without leave to amend if there is any reasonable possibility that the defect can be cured by amendment”]; *Kong v. City of Hawaiian Gardens Redevelopment Agency* (2002) 108 Cal.App.4th 1028, 1037 [“A demurrer should not be sustained without leave to amend if the complaint, liberally construed, can state a cause of action under any theory or if there is a reasonable possibility the defect can be cured by amendment.”]; *Vaccaro v. Kaiman* (1998) 63 Cal.App.4th 761, 768 [“When the defect which justifies striking a complaint is capable of cure, the court should allow leave to amend.”].) The burden is on the complainant to show the Court that a pleading can be amended successfully. (*Blank v. Kirwan* (1985) 39 Cal.3d 311, 318.)

DISCUSSION

Meet and Confer

Code of Civil Procedure section 430.41

requires that before the filing of a demurrer the moving party “shall meet and confer in person or by telephone” with the party who filed the pleading that is subject to demurrer for the purpose of determining whether an agreement can be reached that would resolve the objections to be raised in the demurrer. (Code Civ. Proc. § 430.41(a).) The parties are to meet and confer at least five days before the date the responsive pleading is due. (Code Civ. Proc. § 430.41(a)(2).) Thereafter, the moving party shall file and serve a declaration detailing their meet and confer efforts. (Code Civ. Proc. § 430.41(a)(3).)

Defendant’s counsel declares they sent a meet and confer letter to Plaintiff’s counsel on June 6, 2026, asking Plaintiff to dismiss the action. (Karapetyan Decl., ¶ 3.) Defendant’s counsel declares that they followed up

with Plaintiff's counsel via telephone on June 8, 2026, and Plaintiff refused to dismiss the FAC. (Ibid; see also Decl. of Demurring or Moving Party Regarding Meet and Confer.) Plaintiff does not address meet and confer efforts.

Although one letter and phone call asking opposing party to dismiss the action outright does not sufficiently exhaust meet and confer efforts, the Court cannot overrule a demurrer based on an insufficient meet and confer. (Code Civ. Proc., § 430.41(a)(3).) The Court will review the demurrer on its merits but admonishes Defendant to make more of an effort to meet and confer in the future.

Demurrer

Defendant demurs to the first cause of action for violations of the Song-Beverly Act on the grounds that the subject vehicle is used, and Plaintiffs lack standing to bring Song-Beverly Act claims. (Mot., p. 4.)

Violation of the
Song-Beverly Act

Every manufacturer of consumer goods sold in this state and for which the manufacturer has made an express warranty shall, "if unable to service or repair a new motor vehicle...to conform to the applicable express warranties after a reasonable number of attempts, the manufacturer shall either promptly replace the new motor vehicle in accordance with subparagraph (A) or promptly make restitution to the buyer in accordance with subparagraph (B)." (Civ. Code, § 1793.2(d)(2).)

A "new" motor vehicle is defined by statute as a "motor vehicle sold with a manufacturer's new car warranty." (Civ. Code, § 1793.22(e)(2).) The California Supreme Court held that a used motor vehicle purchased with an unexpired manufacturer's new car warranty does not qualify as a "motor vehicle sold with a manufacturer's new car warranty" under section 1793.22, subdivision (e)(2)'s definition of "new motor vehicle" unless the new car warranty was issued with the sale. (Rodriguez v. FCA US LLC (2024) 17 Cal.5th 189, 197.)

Defendant argues

that the subject vehicle is a certified pre-owned vehicle (CPO) which does not qualify as a new vehicle under the Act. (Mot., p. 6.) Defendant argues that a CPO is not sold with a new car warranty as part of the sale and instead is sold with the remaining warranty on the pre-owned vehicle. (Mot., pp. 6-7.) Further, Defendant points out that the vehicle was a 2022 model not purchased by Plaintiff until 2025 with over 14,000 miles on the odometer. (Mot., p. 10.) Defendant argues that this shows the vehicle was not delivered to Plaintiffs with the manufacturer's new car warranty, and Plaintiffs' first cause of action must fail. (Ibid.)

In opposition, Plaintiffs argue that nothing in the Complaint suggests the vehicle was used. (Opp., p. 4.) However, Plaintiff's also argue that Defendant provided Plaintiffs with a certified pre-owned vehicle warranty which, they argue, is subject to the Song-Beverly Act. (Opp., p. 5.) Plaintiffs request that if the Court sustains Plaintiffs' demurrer, leave to amend be granted so they can plead facts with more specificity. (Opp., 9.)

In reply, Defendant points out that Plaintiffs do not dispute that the vehicle was pre-owned. (Reply, p. 1.) Defendant argues that the Complaint does not allege issuance of a new car warranty, but describes a different warranty issued specifically with a CPO vehicle. (Ibid.) Further, Defendant argues that leave to amend must be denied because Plaintiffs cannot cure the facts with amendment. (Reply, p. 5.)

Here, in the Complaint, Plaintiffs allege that the vehicle is pre-owned. (Comp., ¶ 8.) The Court in *Rodriguez v. FCA US, LLC* (2024) discussed how the sale of a vehicle to its first retail buyer is what gives rise to a new car warranty. (Rodriguez, supra, 17 Cal.5th 189, 199.) Pre-Owned cars, which have been sold to a prior retail purchaser, are not sold with a manufacturer's new car warranty." (Ibid.) Further, a "vehicle purchased with an unexpired manufacturer's new car warranty does not qualify as a 'motor vehicle sold with a manufacturer's new car warranty' under section 1793.22, subdivision (e)(2)'s definition of 'new motor vehicle' unless the new car warranty was issued with the sale." (Id., at 196.) Therefore, when the vehicle was sold to Plaintiff, as a CPO vehicle, it did not carry a new car warranty.

However, the Court acknowledges that

Plaintiff alleges Defendant issued an additional used car warranty upon purchase. (Comp., ¶ 8.) In *Kiluk v. Mercedes-Benz USA, LLC* found that “although the Song-Beverly Act generally binds only distributors and retail sellers in the sale of used goods...[the Vehicle manufacturer] stepped into that role by issuing an express warranty on the sale of a used vehicle” and the defect manifested during the coverage period of the used vehicle warranty. (*Kiluk v. Mercedes-Benz USA, LLC* (2019) 43 Cal.App.5th 334, 337.) Here, Plaintiff’s lawsuit similarly derives from a CPO vehicle, but they have not alleged how Defendant has stepped into the role of a distributor or retail seller, or which express warranty the defect manifested under. (See Complaint.) Given the liberal stand on leave to amend, and the reasonable possibility for Plaintiff to cure defects, leave to amend is granted. (Goodman, supra, 18 Cal.3d at 349.)

Accordingly, Defendant’s demurrer to the first cause of action is SUSTAINED with leave to amend.

CONCLUSION AND ORDER

Defendant Mercedes-Benz USA, LLC’s demurrer as to the first cause of action for Violation of the Song-Beverly Act is SUSTAINED with leave to amend.

Plaintiff has 20 days from the date of this order to file an amended pleading.

MOVING PARTY shall provide notice.